

26STCV10512 26STCV10512

County: los-angeles

Division: Civil Law and Motion

Department: 310

Hearing date: 2026-09-10

Source URL:

https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=LAM%2C310%2C09%2F10%2F2026

Source SHA-256: 8f17eb9105df57b1a91bdf2152ab5e311e646b92e477a35c81b7ca2c7a9701e1

Case Number: 26STCV10512 Hearing Date: September 10, 2026 Dept: 310

Tentative Ruling

Judge Kevin C. Brazile

Department 310

Hearing Date: September 10, 2026

Case Name: Eusse, et al. v. Duron, et al.

Case No.: 26STCV10512

Matter: Anti-SLAPP Motion

Moving Party: Cross-Defendants Gladis Eusse and Luz Edilma Henao Gil

Responding Party: Unopposed

Notice: OK

Ruling: The Motion is granted.

Moving party to give notice.

The Court encourages all parties to appear remotely via LA CourtConnect. If submitting on the Court's tentative ruling, please follow the instructions provided above.

On July 10, 2026, Claudia Duron, Juan Manuel Giron, and Delia Perpetua Cueva Cruz filed a Cross-Complaint alleging, inter alia, nuisance as the fourth cause of action and IIED as the eighth cause of action.

Cross-Defendants Gladis Eusse and Luz Edilma Henao Gil now assert a Special Motion to Strike per CCP § 425.16 as to paragraphs 35–37 (nuisance) and 59, 60, 61, and 63 (IIED) from the Cross-Complaint. These challenged paragraphs allege that Cross-Defendants made false and malicious accusations regarding sexual assault, stalking/harassment, vehicle/gas theft, and threats to report Cross-Complainants to municipal code enforcement or the police.

Legal Standard

Code of Civil Procedure section 425.16 sets forth the procedure governing anti-SLAPP motions. In pertinent part, the statute states, “A cause of action against a person arising from any act of that person in furtherance of the person’s right of petition or free speech under the United States Constitution or the California Constitution in connection with a public issue shall be subject to a special motion to strike, unless the court determines that the plaintiff has established that there is a probability that the plaintiff will prevail on the claim.” (Code Civ. Proc. § 425.16(b)(1).) The purpose of the statute is to identify and dispose of lawsuits brought to chill the valid exercise of a litigant’s constitutional right of petition or free speech. (Code Civ. Proc. § 425.16(a); *Sylmar Air Conditioning v. Pueblo Contracting Services, Inc.* (2004) 122 Cal.App.4th 1049, 1055-1056.)

Courts employ a two-step process to evaluate anti-SLAPP motions. (*Equilon Enterprises v. Consumer Cause, Inc.* (2002) 29 Cal.4th 53, 61.) To invoke the protections of the statute, the defendant must first show that the challenged lawsuit arises from protected activity, such as an act in furtherance of the right of petition or free speech. (*Ibid.*) From this fact, courts “ ‘presume the purpose of the action was to chill the defendant’s exercise of First Amendment rights. It is then up to the plaintiff to rebut the presumption by showing a reasonable probability of success on the merits.’ ” (*Ibid.*) In determining whether the plaintiff has carried this burden, the trial court considers “the pleadings, and supporting and opposing affidavits stating the facts upon which the liability or defense is based.” (Code Civ. Proc. § 425.16(b)(2); see *Soukup v. Law Offices of Herbert Hafif* (2006) 39 Cal.4th 260, 291 (“*Soukup*”).)

Protected Activity

To meet their burden for the first prong of the anti-SLAPP analysis, Cross-Defendants must demonstrate that Cross-Complainants’ allegations arise from protected activity. That is, it must be that “defendant’s conduct by which plaintiff claims to have been injured falls within one of the four categories described in subdivision (e) . . . ‘the act underlying the plaintiff’s cause’ or ‘the act which forms the basis for the plaintiff’s cause of action’ must itself have been an act in furtherance of the right of petition or free speech.’ ” (*Equilon Enterprises v. Consumer Cause, Inc.* (2002) 29 Cal.4th 53, 63 (internal citations omitted).)

An “ ‘act in furtherance of a person’s right of petition or free speech under the United States or California Constitution in connection with a public issue’ includes: (1) any written or oral statement or writing made before a legislative, executive, or judicial proceeding, or any other official proceeding authorized by law, (2) any written or oral statement or writing made in connection with an issue under consideration or review by a legislative, executive, or judicial body, or any other official proceeding authorized by law, (3) any written or oral statement or writing made in a place open to the public or a public forum in connection with an issue of public interest, or (4) any other conduct in furtherance of the exercise of the constitutional right of petition or the constitutional right of free speech in connection with a public issue or an issue of public interest.” (Code Civ. Proc. § 425.16(e).)

Communications made to law enforcement reporting alleged criminal or improper activity constitute statements made in connection with an official proceeding authorized by law under section 425.16(e)(1) and (e)(2) (*Comstock v. Aber* (2012) 212 Cal.App.4th 931, 941; *Chabak v. Monroy* (2007) 154 Cal.App.4th 1502, 1512). Indeed, “the making of allegedly false police reports also can be protected petitioning activity under the first prong of the anti-SLAPP statute if the falsity of the report is controverted.” (*Kenne v. Stennis* (2014) 230 Cal.App.4th 953, 966.) Here, the falsity of any report appears disputed. (See *Flatley v. Mauro* (2006) 39 Cal.4th 299, 320.)

Reporting unpermitted or substandard housing conditions to municipal administrative bodies (such as the Los Angeles Department of Building and Safety and 311) constitutes protected petitioning activity. (*Briggs v. Eden Council for Hope &*

Opportunity (1999) 19 Cal.4th 1106, 1115; ComputerXpress, Inc. v. Jackson (2001) 93 Cal.App.4th 993, 1009).

Additionally, communications made in anticipation of initiating formal proceedings or during pending litigation—including statements informing a landlord of an intent to report violations or allegations set forth directly within the operative First Amended Complaint—are protected under section 425.16(e)(1) and (e)(2). (Flatley v. Mauro (2006) 39 Cal.4th 299, 322; Dove Audio, Inc. v. Rosenfeld, Meyer & Susman (1996) 47 Cal.App.4th 777, 784).

Allegations in the Cross-Complaint that Cross-Defendants acted "maliciously" or made "false" statements do not strip the communications of anti-SLAPP protection at step one. (Wilson v. Cable News Network, Inc. (2019) 7 Cal.5th 871, 887-888).

The Court finds that Cross-Defendants carried their burden to show that the subject allegations arise from protected activity.

Minimal Merit

On the second component of the analysis, courts employ a "summary-judgment-like" procedure, "accepting as true the evidence favorable to the plaintiff and evaluating the defendant's evidence only to determine whether the defendant has defeated the plaintiff's evidence as a matter of law." (Gerbosi v. Gaims, Weil, West & Epstein, LLP (2011) 193 Cal.App.4th 435, 444.) In other words, the Court does not assess credibility, and the plaintiff is not required to meet the preponderance of the evidence standard. The Court accepts as true the evidence favorable to the plaintiff, who need only establish that his or her claim has "minimal merit" to avoid being stricken as a SLAPP. (Soukup, supra, 39 Cal.4th at p. 291.)

Because they did not file any opposition, Cross-Complainants failed to carry their burden on the second prong to show that they have a reasonable probability of prevailing on the subject allegations.

Therefore, the Anti-SLAPP Motion is granted. The subject allegations are stricken.

Moving party to give notice.